

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 777

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO UNIFORM CONTROLLED SUBSTANCES; AMENDING SECTION 37-2705, IDAHO CODE, TO REVISE PROVISIONS REGARDING SCHEDULE I CONTROLLED SUBSTANCES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 37-2707, IDAHO CODE, TO REVISE PROVISIONS REGARDING SCHEDULE II CONTROLLED SUBSTANCES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 37-2709, IDAHO CODE, TO REVISE PROVISIONS REGARDING SCHEDULE III CONTROLLED SUBSTANCES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 37-2711, IDAHO CODE, TO REVISE PROVISIONS REGARDING SCHEDULE IV CONTROLLED SUBSTANCES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 37-2713, IDAHO CODE, TO REVISE PROVISIONS REGARDING SCHEDULE V CONTROLLED SUBSTANCES; AMENDING SECTION 37-2716, IDAHO CODE, TO REVISE PROVISIONS REGARDING REGISTRATION REQUIREMENTS; AMENDING SECTION 37-2717, IDAHO CODE, TO REVISE A PROVISION REGARDING REGISTRATION; AMENDING SECTION 37-2718, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISCIPLINE; AMENDING SECTION 37-2719, IDAHO CODE, TO REVISE PROVISIONS REGARDING ORDERS TO SHOW CAUSE; AMENDING SECTION 37-2720, IDAHO CODE, TO REVISE A PROVISION REGARDING RECORDS, DRUG STORAGE, AND INVENTORY; AMENDING SECTION 37-2722, IDAHO CODE, TO REVISE PROVISIONS REGARDING ISSUING, DISTRIBUTING, AND DISPENSING OF CONTROLLED SUBSTANCES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 37-2726, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CONTROLLED SUBSTANCES PRESCRIPTIONS DATABASE; AMENDING SECTION 37-2731, IDAHO CODE, TO REVISE A PROVISION REGARDING INFORMATION REQUIRED ON LABELS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 37-2705, Idaho Code, be, and the same is hereby amended to read as follows:

37-2705. SCHEDULE I. (a) The controlled substances listed in this section are included in schedule I.

(b) Any of the following opiates, including their isomers, esters, ethers, salts, and salts of isomers, esters, and ethers, unless specifically excepted, whenever the existence of these isomers, esters, ethers and salts is possible within the specific chemical designation:

- (1) Acetyl-alpha-methylfentanyl (~~N-[1-(1-methyl-2-phenethyl)-4-piperidinyl]-N-phenylacetamide~~);
- (2) Acetylmethadol;
- (3) Acetyl fentanyl (~~N-(1-phenethylpiperidin-4-yl)-N-phenylacetamide~~);
- (4) Acryl fentanyl (~~N-(1-phenethylpiperidin-4-yl)-N-phenylacrylamide~~);
- (5) Allylprodine;

1 (6) Alphacetylmethadol (except levo-alphacetylmethadol also known as
 2 levo-alpha-acetylmethadol, levomethadyl acetate or LAAM);
 3 (7) Alphameprodine;
 4 (8) Alphamethadol;
 5 (9) Alpha'-methyl butyryl fentanyl (~~2-methyl-N-(1-phenethylpiperidin-4-yl)-N-phenylbutanamide~~);
 6
 7 (10) Alpha-methylfentanyl;
 8 (11) Alpha-methylthiofentanyl (~~N-[1-methyl-2-(2-thienyl)ethyl-4-piperidinyl]-N-phenylpropanamide~~);
 9
 10 (12) Benzethidine;
 11 (13) Betacetylmethadol;
 12 (14) Beta-hydroxyfentanyl (~~N-[1-(2-hydroxy-2-phenethyl)-4-piperidinyl]-N-phenylpropanamide~~);
 13
 14 (15) Beta-hydroxythiofentanyl;
 15 (16) Beta-hydroxy-3-methylfentanyl (~~N-(1-(2-hydroxy-2-phenethyl)-3-methyl-4-piperidinyl)-N-phenylpropanamide~~);
 16
 17 (17) Betameprodine;
 18 (18) Betamethadol;
 19 (19) Beta-methyl fentanyl;
 20 (20) Beta-methylacetyl fentanyl;
 21 ~~(20)~~ (21) Beta'-phenyl fentanyl;
 22 ~~(21)~~ (22) Betaprodine;
 23 ~~(22)~~ (23) Brorphine (~~1-(1-(1-(4-Bromophenyl)ethyl)piperidin-4-yl)-1,3-dihydro-2H-benzo[D]imidazol-2-one~~);
 24
 25 ~~(23)~~ (24) Butonitazene (~~2-(2-(4-butoxybenzyl)-5-nitro-1H-benzimidazol-1-yl)-N,N-diethylethan-1-amine~~);
 26
 27 ~~(24)~~ (25) Clonitazene;
 28 ~~(25)~~ (26) Crotonyl fentanyl (~~(E)-N-(1-phenethylpiperidin-4-yl)-N-phenylbut-2-enamide~~);
 29
 30 ~~(26)~~ (27) Cyclopentyl fentanyl (~~N-(1-phenethylpiperidin-4-yl)-N-phenylcyclopentanecarboxamide~~);
 31
 32 ~~(27)~~ (28) Cyclopropyl fentanyl (~~N-(1-phenethylpiperidin-4-yl)-N-phenylcyclopropanecarboxamide~~);
 33
 34 ~~(28)~~ (29) Dextromoramide;
 35 ~~(29)~~ (30) Diampromide;
 36 ~~(30)~~ (31) Diethylthiambutene;
 37 ~~(31)~~ (32) Difenoxin;
 38 ~~(32)~~ (33) Dimenoxadol;
 39 ~~(33)~~ (34) Dimepheptanol;
 40 ~~(34)~~ (35) 2',5'-Dimethoxyfentanyl (~~N-(1-(2,5-dimethoxyphenethyl)piperidin-4-yl)-N-phenylpropionamide~~);
 41
 42 ~~(35)~~ (36) Dimethylthiambutene;
 43 ~~(36)~~ (37) Dioxaphetyl butyrate;
 44 ~~(37)~~ (38) Dipipanone;
 45 ~~(38)~~ (39) Ethylmethylthiambutene;
 46 ~~(39)~~ (40) Etodesnitazene; (Etazene) (~~2-(2-(4-ethoxybenzyl)-1H-benzimidazol-1-yl)-N,N-diethylethan-1-amine~~);
 47
 48 ~~(40)~~ (41) Etonitazene;
 49 ~~(41)~~ (42) Etoxeridine;

~~(42)~~ (43) Fentanyl-related substances. "Fentanyl-related substances" means any substance not otherwise listed and for which no exemption or approval is in effect under section 505 of the federal food, drug, and cosmetic act, 21 U.S.C. 355, and that is structurally related to fentanyl by one (1) or more of the following modifications:

- i. Replacement of the phenyl portion of the phenethyl group by any monocycle, whether or not further substituted in or on the monocycle;
- ii. Substitution in or on the phenethyl group with alkyl, alkenyl, alkoxy, hydroxyl, halo, haloalkyl, amino, or nitro groups;
- iii. Substitution in or on the piperidine ring with alkyl, alkenyl, alkoxy, ester, ether, hydroxyl, halo, haloalkyl, amino, or nitro groups;
- iv. ~~Replacement~~ Substitution in or on the aniline ring or ~~replacement~~ of the aniline ring with any aromatic monocycle, whether or not further substituted in or on the aromatic monocycle; and/or
- v. Replacement of the N-propionyl group by another acyl group;

~~(43)~~ (44) Fentanyl carabamate;

~~(44)~~ (45) Flunitazene (N,N-diethyl-2-(2-(4-fluorobenzyl)-5-nitro-1H-benzimidazol-1-yl)ethan-1-amine);

~~(45)~~ (46) 4-Fluoroisobutyryl fentanyl (N-(4-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)isobutyramide);

~~(46)~~ (47) 2'-fluoro ortho-fluorofentanyl;

~~(47)~~ (48) Furanyl fentanyl (N-(1-phenethylpiperidin-4-yl)-N-phenylfuran-2-carboxamide);

~~(48)~~ (49) 3-Furanyl fentanyl (N-(1-phenethylpiperidin-4-yl)-N-phenylfuran-3-carboxamide);

~~(49)~~ (50) Furethidine;

~~(50)~~ (51) Hydroxypethidine;

~~(51)~~ (52) Isobutyryl fentanyl (N-(1-phenethylpiperidin-4-yl)-N-phenylisobutyramide);

~~(52)~~ (53) Isovaleryl fentanyl (3-methyl-N-(1-phenethylpiperidin-4-yl)-N-phenylbutanimide);

~~(53)~~ (54) Isotonitazene (N,N-diethyl-2-(2-(4-isopropoxybenzyl)-5-nitro-1H-benzimidazol-1-yl)ethan-1-amine);

~~(54)~~ (55) Ketobemidone;

~~(55)~~ (56) Levomoramide;

~~(56)~~ (57) Levophenacylmorphane;

~~(57)~~ (58) Meta-fluorofentanyl (N-(3-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)isobutyramide);

(59) Meta-fluorofuranyl fentanyl;

~~(58)~~ (60) Meta-fluoroisobutyryl fentanyl (N-(3-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)isobutyramide);

~~(59)~~ (61) Methoxyacetyl fentanyl (2-methoxy-N-(1-phenethylpiperidin-4-yl)-N-phenylacetamide);

~~(60)~~ (62) 2-Methyl AP-237 (1-(2-methyl-4-(3-phenylprop-2-en-1-yl)piperazin-1-yl)butan-1-one);

~~(61)~~ (63) 4'-methyl acetyl fentanyl;

~~(62)~~ (64) 3-Methylfentanyl;

~~(63)~~ (65) 3-methylthiofentanyl (N-[(3-methyl-1-(2-thienyl)ethyl-4-piperidinyl]-N-phenylpropanamide) (and optical and geometric isomers of 3-methylthiofentanyl);
~~(64)~~ (66) Metodesnitazene (N,N-diethyl-2-(2-(4-methoxybenzyl)-1H-benzimidazol-1-yl)ethan-1-amine);
~~(65)~~ (67) Metonitazene (N,N-diethyl-2-(2-(4-methoxybenzyl)-5-nitro-1H-benzimidazol-1-yl)ethan-1-amine);
~~(66)~~ (68) Morpheridine;
~~(67)~~ (69) MPPP (1-methyl-4-phenyl-4-propionoxypiperidine);
~~(68)~~ (70) MT-45 (1-cyclohexyl-4-(1,2-diphenylethyl)piperazine);
~~(69)~~ (71) N-(4-chlorophenyl)-N-(1-phenethylpiperidin-4-yl)isobutyramide (p-Para-chloroisobutyryl fentanyl);
~~(70)~~ (72) Noracymethadol;
~~(71)~~ (73) Norlevorphanol;
~~(72)~~ (74) Normethadone;
~~(73)~~ (75) Norpipanone;
(76) N-desethyl isotonitazene;
(77) N-piperidinyl etonitazene;
~~(74)~~ (78) N-pyrrolidino etonitazene (2-(4-ethoxybenzyl)-5-nitro-1-(2-(pyrrolidin-1-yl)ethyl)-1H-benzimidazole);
~~(75)~~ (79) Ocfentanil (N-(2-fluorophenyl)-2-methoxy-N-(1-phenethylpiperidin-4-yl)acetamide);
(80) Ortho-chlorofentanyl;
~~(76)~~ (81) Ortho-fluoroacryl fentanyl;
~~(77)~~ (82) Ortho-fluorobutyryl fentanyl;
~~(78)~~ (83) Ortho-fluorofentanyl;
~~(79)~~ (84) Ortho-fluorofuranyl fentanyl (N-(2-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)furan-2-carboxamide);
~~(80)~~ (85) Ortho-fluoroisobutyryl fentanyl;
~~(81)~~ (86) Ortho-methyl acetylfentanyl;
(87) Ortho-methylcyclopropylfentanyl;
~~(82)~~ (88) Ortho-methyl methoxyacetyl fentanyl;
(89) Para-chlorofentanyl;
~~(83)~~ (90) Para-chloroisobutyryl fentanyl (N-(4-chlorophenyl)-N-(1-phenethylpiperidin-4-yl)isobutyramide);
~~(84)~~ (91) Para-fluorobutyryl fentanyl (N-(4-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)butyramide);
~~(85)~~ (92) Para-fluorofentanyl (N-(4-fluorophenyl)-N-[1-(2-phenethyl)-4-piperidinyl]propanamide);
~~(86)~~ (93) Para-fluoro furanyl fentanyl;
(94) Para-fluoro valeryl fentanyl;
~~(87)~~ (95) Para-methoxybutyryl fentanyl (N-(4-methoxyphenyl)-N-(1-phenethylpiperidin-4-yl)butyramide);
~~(88)~~ (96) Para-methoxyfuranyl fentanyl (N-(4-methoxyphenyl)-N-(1-phenethylpiperidin-4-yl)furan-2-carboxamide);
~~(89)~~ (97) Para-methylcyclopropyl fentanyl (N-(4-methylphenyl)-N-(1-phenylpiperidin-4-yl)cyclopropanecarboxamide);
~~(90)~~ (98) Para-methylfentanyl;
~~(91)~~ (99) PEPAP (1-(2-phenethyl)-4-phenyl-4-acetoxypiperidine);
~~(92)~~ (100) Phenadoxone;

~~(93)~~ (101) Phenampromide;
~~(94)~~ (102) Phenomorphan;
~~(95)~~ (103) Phenoperidine;
~~(96)~~ (104) Phenyl fentanyl;
~~(97)~~ (105) Piritramide;
~~(98)~~ (106) Proheptazine;
~~(99)~~ (107) Properidine;
~~(100)~~ (108) Propiram;
~~(101)~~ (109) Protonitazene (N,N-diethyl-2-(5-nitro-2-(4-propoxybenzyl)-1H-benzimidazol-1-yl)ethan-1-amine);
~~(102)~~ (110) Racemoramide;
~~(103)~~ (111) Tetrahydrofuranyl fentanyl (N-(1-phenethylpiperidine-4-yl)-N-phenyltetrahydrofuran-2-carboxamide);
(112) Tetrahydrothiofuranyl fentanyl;
~~(104)~~ (113) Thiofentanyl (N-phenyl-N-[1-(2-thienyl)ethyl-4-piperidinyl]-propanamide);
~~(105)~~ (114) Tilidine;
~~(106)~~ (115) Trimeperidine;
~~(107)~~ (116) u-47700 (3,4-Dichloro-N-[2-(dimethylamino)cyclohexyl]-N-methylbenzamide);
~~(108)~~ (117) Valeryl fentanyl (N-(1-phenethylpiperidin-4-yl)-N-phenylpentanamide);
~~(109)~~ (118) Zipeprol (1-methoxy-3-[4-(2-methoxy-2-phenylethyl)piperazin-1-yl]-1-phenylpropan-2-ol).

(c) Any of the following opium derivatives, their salts, isomers and salts of isomers, unless specifically excepted, whenever the existence of these salts, isomers and salts of isomers is possible within the specific chemical designation:

- (1) Acetorphine;
- (2) Acetyldihydrocodeine;
- (3) Benzylmorphine;
- (4) Codeine methylbromide;
- (5) Codeine-N-Oxide;
- (6) Cyprenorphine;
- (7) Desomorphine;
- (8) Dihydromorphine;
- (9) Drotebanol;
- (10) Etorphine (except hydrochloride salt);
- (11) Heroin;
- (12) Hydromorphenol;
- (13) Methyldesorphine;
- (14) Methyldihydromorphine;
- (15) Morphine methylbromide;
- (16) Morphine methylsulfonate;
- (17) Morphine-N-Oxide;
- (18) Myrophine;
- (19) Nicocodeine;
- (20) Nicomorphine;
- (21) Normorphine;
- (22) Pholcodine;

(23) Thebacon.

(d) Hallucinogenic substances. Any material, compound, mixture or preparation that contains any quantity of the following hallucinogenic substances, their salts, isomers and salts of isomers, unless specifically excepted, whenever the existence of these salts, isomers, and salts of isomers is possible within the specific chemical designation (for purposes of this subsection only, the term "isomer" includes the optical, position and geometric isomers):

(1) Dimethoxyphenethylamine, or any compound not specifically excepted or listed in another schedule that can be formed from dimethoxyphenethylamine by replacement of one (1) or more hydrogen atoms with another atom(s), functional group(s) or substructure(s) including, but not limited to, compounds such as DOB, DOC, 2C-B, 25B-NBOMe;

(2) Methoxyamphetamine or any compound not specifically excepted or listed in another schedule that can be formed from methoxyamphetamine by replacement of one (1) or more hydrogen atoms with another atom(s), functional group(s) or substructure(s) including, but not limited to, compounds such as PMA and DOM;

(3) 5-methoxy-3,4-methylenedioxy-amphetamine;

(4) 5-methoxy-N,N-diisopropyltryptamine (5-MeO-DIPT);

(5) Amphetamine or methamphetamine with a halogen substitution on the benzyl ring, including compounds such as fluorinated amphetamine and fluorinated methamphetamine;

(6) 3,4-methylenedioxy amphetamine (MDA);

(7) 3,4-methylenedioxymethamphetamine (MDMA);

(8) 3,4-methylenedioxy-N-ethylamphetamine (~~also known as N-ethyl-alpha-methyl-3,4 (methylenedioxy) phenethylamine, and N-ethyl MDA, MDE, MDEA~~);

(9) N-hydroxy-3,4-methylenedioxyamphetamine (~~also known as N-hydroxy-alpha-methyl-3,4 (methylenedioxy) phenethylamine, and N-hydroxy MDA~~);

(10) 3,4,5-trimethoxy amphetamine;

(11) 5-methoxy-N,N-dimethyltryptamine (~~also known as 5-methoxy-3-2[2-(dimethylamino)ethyl]-indole and 5-MeO-DMT~~);

(12) Alpha-ethyltryptamine (~~some other names: etryptamine, 3-(2-aminoethyl)-indole AET~~);

(13) Alpha-methyltryptamine (AMT);

(14) Bufotenine;

(15) Diethyltryptamine (DET);

(16) Dimethyltryptamine (DMT);

(17) Ibogaine;

(18) Lysergic acid diethylamide (LSD);

(19) Marihuana (marijuana);

(20) Mescaline;

(21) Methoxetamine;

(22) Parahexyl;

(23) Peyote;

(24) N-ethyl-3-piperidyl benzilate;

(25) N-methyl-3-piperidyl benzilate;

(26) Para-methoxymethamphetamine (PMMA), ~~1-(4-methoxyphenyl)-N-methylpropan-2-amine;~~

(27) Psilocybin;

(28) Psilocyn;

(29) Tetrahydrocannabinols or synthetic equivalents of the substances contained in the plant, or in the resinous extractives of Cannabis, sp. and/or synthetic substances, derivatives, and their isomers with similar chemical structure such as the following:

i. Tetrahydrocannabinols, except for the permitted amount of tetrahydrocannabinol found in industrial hemp, or nabiximols in a drug product approved by the United States food and drug administration:

a. Δ^1 cis or trans tetrahydrocannabinol, and their optical isomers, excluding dronabinol in sesame oil and encapsulated in either a soft gelatin capsule or in an oral solution in a drug product approved by the U.S. Food and Drug Administration.

b. Δ^6 cis or trans tetrahydrocannabinol, and their optical isomers.

c. $\Delta^{3,4}$ cis or trans tetrahydrocannabinol, and its optical isomers. (Since nomenclature of these substances is not internationally standardized, compounds of these structures, regardless of numerical designation of atomic positions are covered.)

d. [(6aR,10aR)-9-(hydroxymethyl)-6,6-dimethyl-3-(2methyl-octan-2-yl)-6a,7,10,10a-tetrahydrobenzo[c]chromen-1-ol)], also known as 6aR-trans-3-(1,1-dimethylheptyl)-6a,7,10,10a-tetrahydro-1-hydroxy-6,6-dimethyl-6H-dibenzo[b,d]pyran-9-methanol (HU-210) and its geometric isomers (HU211 or dexanabinol).

ii. The following synthetic drugs:

a. Any compound structurally derived from (1H-indole-3-yl)(cycloalkyl, cycloalkenyl, aryl)methanone, or (1H-indole-3-yl)(cycloalkyl, cycloalkenyl, aryl)methane, or (1H-indole-3-yl)(cycloalkyl, cycloalkenyl, aryl), methyl or dimethyl butanoate, amino-methyl (or dimethyl)-1-oxobutan-2-yl carboxamide by substitution at the nitrogen atoms of the indole ring or carboxamide to any extent, whether or not further substituted in or on the indole ring to any extent, whether or not substituted to any extent in or on the cycloalkyl, cycloalkenyl, aryl ring(s) (substitution in the ring may include, but is not limited to, heteroatoms such as nitrogen, sulfur and oxygen).

b. N-(1-amino-3-methyl-1-oxobutan-2-yl)-1-(5-fluoropentyl)-1H-indazole-3-carboxamide (5F-AB-PINACA).

c. ~~1-(1,3-benzodioxol-5-yl)-2-(ethylamino)-pentan-1-one (N-ethylpentylone, ephylone).~~

d. 1-(4-cyanobutyl)-N-(2-phenylpropan-2-yl)-1H-indazole-3-carboxamide (4-cn-cumyl-BUTINACA).

e. 5-pentyl-2-(2-phenylpropan-2-yl)pyrido[4,3-b]indol-1-one (Cumyl ~~PeGACLONE~~ Pegaclone).

f. Ethyl 2-(1-(5-fluoropentyl)-1H-indazole-3-carboxamido)-3,3-dimethylbutanoate * (5F-EDMB-PINACA).

g. Ethyl 2-(1-(5-fluoropentyl)-1H-indole-3-carboxamido)-3,3-dimethylbutanoate (5F-EDMB-PICA).

h. (1-(4-fluorobenzyl)-1H-indol-3-yl) (2,2,3,3-tetramethylcyclopropyl)methanone (FUB-144).

i. 1-(5-fluoropentyl)-N-(2-phenylpropan-2-yl)-1H-indazole-3-carboxamide (5f-cumyl-pinaca; SGT-25).

j. (1-(5-fluoropentyl)-N-(2-phenylpropan-2-yl)-1H-pyrrolo[2.3-B]pyridine-3-carboxamide (5f-cumyl-P7AICA).

k. FUB-AMB, MMB- FUBINACA (Methyl 2-(1-(4-fluorobenzyl)-1H-indazole-3-carboxamido)-3-methylbutanoate).

l. MMB-FUBICA (Methyl 2-(1-(4-Fluorobenzyl)-1H-Indole-3-carboxamido)-3-methyl butanoate).

m. Methyl 3,3-dimethyl-2-((1-(pent-4-en-1-yl)-1H-indazole-3-yl)-formamido-carboxamido)butanoate (MDMB-4EN-PINACA).

n. Methyl 2-(1-(cyclohexylmethyl)-1H-indole-3-carboxamido)-3-methylbutanoate (MMB-CHMICA, AMB-CHMICA).

o. Methyl 2-(1-(cyclohexylmethyl)-1H-indole-3-carboxamido)-3,3-dimethylbutanoate (MDMB-CHMICA, MMB-CHMINACA).

p. Methyl 2-(1-(4-fluorobenzyl)-1H-indazole-3-carboxamido)-3,3-dimethylbutanoate (MDMB-FUBINACA).

q. Methyl 2-[[1-(4-Fluorobutyl)Indole-3-Carbonyl]Amino]-3,3-Dimethyl-Butanoate (4F-MDMB-BUTICA, 4F-MDMB-BICA).

r. Methyl 2-(1-(5-fluoropentyl)-1H-indole-3-carboxamido)-3,3-dimethylbutanoate (5F-MDMB-PICA, 5F-MDMB-2201).

s. Methyl 2-(1-(5-fluoropentyl)-1H-indazole-3-carboxamido)-3,3-dimethylbutanoate (5F-ADB, 5F-MDMB-PINACA).

t. Methyl 2-(1-(5-fluoropentyl)-1H-indazole-3-carboxamido)-3-methylbutanoate (5F-AMB).

u. N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-butyl-1H-Indazole-3-carboxamide (ADB-BUTINACA).

v. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(4-fluorobenzyl)-1H-indazole-3-carboxamide (ADB-FUBINACA).

w. N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(pent-4-en-1-yl)-1H-indazole-3-carboxamide (ADB-4EN-PINACA).

x. N-(adamantan-1-yl)-1-(4-fluorobenzyl)-1H-indazole-3-carboxamide (FUB-AKB48; FUB-APINACA).

y. N-(adamantan-1-yl)-1-(5-fluoropentyl)-1H-indazole-3-carboxamide (5F-APINACA, 5F-AKB48).

z. N-(1-amino-3-methyl-1-oxobutan-2-yl)-1-(Cyclohexylmethyl)-1H-indazole-3-carboxamide (AB-CHMINACA).

aa. Naphthalen-1-yl 1-(5-fluoropentyl)-1H-indole-3-carboxylate (NM2201; CBL2201).

bb. Any compound structurally derived from 3-(1-naphthoyl)pyrrole by substitution at the nitrogen atom of the pyrrole ring to any extent, whether or not further sub-

stituted in the pyrrole ring to any extent, whether or not substituted in the naphthyl ring to any extent.

cc. Any compound structurally derived from 1-(1-naphthylmethyl)indene by substitution at the 3-position of the indene ring to any extent, whether or not further substituted in the indene ring to any extent, whether or not substituted in the naphthyl ring to any extent.

dd. Any compound structurally derived from 3-phenylacetylindole by substitution at the nitrogen atom of the indole ring to any extent, whether or not further substituted in the indole ring to any extent, whether or not substituted in the phenyl ring to any extent.

ee. Any compound structurally derived from 2-(3-hydroxycyclohexyl)phenol by substitution at the 5-position of the phenolic ring to any extent, whether or not substituted in the cyclohexyl ring to any extent.

ff. Any compound structurally derived from 3-(benzoyl)indole structure with substitution at the nitrogen atom of the indole ring to any extent, whether or not further substituted in the indole ring to any extent and whether or not substituted in the phenyl ring to any extent.

gg. [2,3-dihydro-5-methyl-3-(4-morpholinylmethyl)pyrrolo[1,2,3-de]-1,4-benzoxazin-6-yl]-1-naphthalenylmethanone (WIN-55,212-2).

hh. 3-dimethylheptyl-11-hydroxyhexahydrocannabinol (HU-243).

ii. [(6S, 6aR, 9R, 10aR)-9-hydroxy-6-methyl-3-[(2R)-5-phenylpentan-2-yl]oxy-5,6,6a,7,8,9,10,10a-octahydrophenanthridin-1-yl]acetate (CP 50,5561).

(30) Ethylamine analog of phencyclidine: N-ethyl-1-phenylcyclohexylamine (1-phenylcyclohexyl) ethylamine; N-(1-phenylcyclohexyl) ethylamine, cyclohexamine, PCE;

(31) Pyrrolidine analog of phencyclidine: 1-(phenylcyclohexyl) -pyrrolidine, PCPy, PHP;

(32) Thiophene analog of phencyclidine 1-[1-(2-thienyl)-cyclohexyl]-piperidine, 2-thienylanalog of phencyclidine, TPCP, TCP;

~~(33) Thiofuranyl fentanyl;~~

~~(34)~~ (33) 1-[1-(2-thienyl) cyclohexyl] pyrrolidine another name: TCPy;

~~(35)~~ (34) Spores or mycelium capable of producing mushrooms that contain psilocybin or psilocin.

(e) Unless specifically excepted or unless listed in another schedule, any material, compound, mixture or preparation which contains any quantity of the following substances having a depressant effect on the central nervous system, including its salts, isomers, and salts of isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

(1) Bromazolam;

~~(1)~~ (2) Clonazolam;

~~(2)~~ (3) Diclazepam;

~~(3)~~ (4) Gamma hydroxybutyric acid (~~some other names include~~ GHB; gamma-hydroxybutyrate, 4-hydroxybutyrate; 4-hydroxybutanoic acid; sodium oxybate; sodium oxybutyrate);

~~(4)~~ (5) Etizolam;

~~(5)~~ (6) Flualprazolam;

~~(6)~~ (7) Flubromazolam;

~~(7)~~ (8) Flunitrazepam (also known as R2, Rohypnol);

~~(8)~~ (9) Mecloqualone;

~~(9)~~ (10) Methaqualone.

(f) Stimulants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a stimulant effect on the central nervous system, including its salts, isomers, and salts of isomers:

(1) Amineptine ~~(7-[(10,11-dihydro-5H-dibenzo[a,d]cyclohepten-5-yl)amino]heptanoic acid);~~

(2) Aminorex (~~some other names: (aminoxaphen), 2-amino-5-phenyl-2-oxazoline, or 4,5-dihydro-5-phenyl-2-oxazolamine), 4,4'-dimethylaminorex (4,4'-DMAR; 4,5-dihydro-4-methyl-5-(4-methylphenyl)-2-oxazolamine) or (4,5-dihydro-5-phenyl-2-oxazolamine);~~

(3) Cathinone (~~some other names: 2-amino-1-phenol-1-propanone, alpha-aminopropiophenone, 2-aminopropiophenone and norephedrone);~~

(4) Substituted cathinones. Any compound, except bupropion or compounds listed under a different schedule, structurally derived from 2-aminopropan-1-one by substitution at the 1-position with either phenyl, naphthyl or thiophene ring systems, whether or not the compound is further modified in any of the following ways:

i. By substitution in the ring system to any extent with alkyl, alkylenedioxy, alkoxy, haloalkyl, hydroxyl or halide substituents, whether or not further substituted in the ring system by one (1) or more other univalent substituents;

ii. By substitution at the 3-position with an acyclic alkyl substituent;

iii. By substitution at the 2-amino nitrogen atom with alkyl, dialkyl, benzyl or methoxybenzyl groups, or by inclusion of the 2-amino nitrogen atom in a cyclic structure.

(5) Alpha-pyrrolidinoheptaphenone* (PV8);

(6) Alpha-pyrrolidinohexanophenone* (A-PHP);

(7) 4-chloro-alpha-pyrrolidinovalerophenone* (4-chloro-a-pvp);

(8) Ethylphenidate;

~~(8)~~ (9) Eutylone ~~(1-(1,3-benzodioxol-5-yl)-2-(ethylamino)butan-1-one) (bk-EBDB);~~

~~(9)~~ (10) Fenethylamine;

~~(10)~~ (11) Mesocarb ~~(N-phenyl-N'-(3-(1-phenylpropan-2-yl)-1,2,3-oxadiazol-3-ium-5-yl)carbamidate);~~

~~(11)~~ (12) Methcathinone (~~some other names: 2-(methyl-amino)-propiophenone, alpha-(methylamino)-propiophenone, N-methylcathinone, AL-464, AL-422, AL-463 and UR1423);~~

~~(12)~~ (13) Methiopropamine ~~(N-methyl-1-(thiophen-2-yl)propan-2-amine);~~

~~(13)~~ (14) (+/-) cis-4-methylaminorex [~~(+/-) cis-4,5-dihydro-4-methyl-5-phenyl-2-oxazolamine~~];
~~(14)~~ (15) 4-methyl-alpha-ethylaminopentiophenone* (4-MEAP);
~~(15)~~ (16) 4'-methyl-alpha-pyrrolidinohexiophenone* (MPHP);
~~(16)~~ (17) 2-(methylamino)-1-(3-methylphenyl)propan-1-one (3-MMC);
~~(17)~~ (18) 4-methyl-1-phenyl-2-(pyrrolidine-1-yl)pent-1-one) (ALPHA-PIHP);
~~(18)~~ (19) N-benzylpiperazine (also known as: BZP, 1-benzylpiperazine);
~~(19)~~ (20) N-ethylamphetamine;
~~(20)~~ (21) N-ethylhexedrone*;
~~(21)~~ (22) N,N-dimethylamphetamine ~~(also known as: N,N-alpha-trimethyl-benzeneethanamine)~~.

SECTION 2. That Section 37-2707, Idaho Code, be, and the same is hereby amended to read as follows:

37-2707. SCHEDULE II. (a) Schedule II shall consist of the drugs and other substances, by whatever official name, common or usual name, chemical name, or brand name designated, listed in this section.

(b) Substances, vegetable origin or chemical synthesis. Unless specifically excepted or unless listed in another schedule, any of the following substances whether produced directly or indirectly by extraction from substances of vegetable origin, or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis:

(1) Opium and opiate, and any salt, compound, derivative, or preparation of opium or opiate, excluding apomorphine, dextrorphan, nalbuphine, naldemedine, nalmefene, naloxegol, 6 β -naltexol, naloxone, naltrexone, samidorphane, and their respective salts, but including the following:

1. i. Raw opium;
2. ii. Opium extracts;
3. iii. Opium fluid extracts;
4. iv. Powdered opium;
5. v. Granulated opium;
6. vi. Tincture of opium;
7. vii. Codeine;
8. viii. Dihydroetorphine;
9. ix. Diprenorphine;
10. x. Ethylmorphine;
11. xi. Etorphine hydrochloride;
12. xii. Hydrocodone;
13. xiii. Hydromorphone;
14. xiv. Metopon;
15. xv. Morphine;
16. xvi. Noroxymorphone;
17. xvii. Oripavine;
18. xviii. Oxycodone;
19. xix. Oxymorphone;
20. xx. Thebaine.

(2) Any salt, compound, derivative, or preparation thereof which is chemically equivalent or identical with any of the substances referred to in paragraph (1) of this subsection, except that these substances shall not include the isoquinoline alkaloids of opium.

(3) Opium poppy and poppy straw.

(4) Coca leaves and any salt, compound, derivative, or preparation of coca leaves, and any salt, compound, derivative, or preparation thereof which is chemically equivalent or identical with any of these substances, but shall not include the following:

1- i. Decocainized coca leaves or extractions of coca leaves, which extractions do not contain cocaine; or ecgonine; or

2- ii. [¹²³I]ioflupane.

(5) Benzoylecgonine.

(6) ~~Methylbenzoylecgonine~~ (Cocaine, - its salts, optical and geometric isomers, and salts of optical and geometric isomers).

(7) Concentrate of poppy straw (the crude extract of poppy straw in liquid, solid or powder form that contains the phenanthrine alkaloids of the opium poppy).

(c) Any of the following opiates, including their isomers, esters, ethers, salts, and salts of isomers, whenever the existence of these isomers, esters, ethers and salts is possible within the specific chemical designation, unless specifically excepted or unless listed in another schedule:

(1) Alfentanil;

(2) Alphaprodine;

(3) Anileridine;

(4) Bezitramide;

(5) Bulk Dextropropoxyphene (nondosage forms);

(6) Carfentanil;

(7) Dihydrocodeine;

(8) Diphenoxylate;

(9) Fentanyl;

(10) Isomethadone;

(11) Levo-alpha-acetylmethadol (also known as levo-alpha-acetylmethadol, levomethadyl acetate, LAAM);

(12) Levomethorphan;

(13) Levorphanol;

(14) Metazocine;

(15) Methadone;

(16) Methadone -- Intermediate, 4-cyano-2-dimethylamino-4, 4-diphenyl butane;

(17) Moramide -- Intermediate, 2-methyl-3-morpholino-1, 1-diphenyl propane-carboxylic acid;

~~(18) Norfentanyl (N-phenyl-N-(piperidin-4-yl) propionamide);~~

~~(19) (18) Oliceridine;~~

~~(20) (19) Pethidine (meperidine);~~

~~(21) (20) Pethidine -- Intermediate -- A, 4-cyano-1-methyl-4-phenylpiperidine;~~

~~(22) (21) Pethidine -- Intermediate -- B, ethyl-4-phenylpiperidine-4-carboxylate;~~

~~(23)~~ (22) Pethidine -- Intermediate -- C, 1-methyl-4-phenylpiperidine-4-carboxylic acid;
~~(24)~~ (23) Phenazocine;
~~(25)~~ (24) Piminodine;
~~(26)~~ (25) Racemethorphan;
~~(27)~~ (26) Racemorphan;
~~(28)~~ (27) Remifentanil;
~~(29)~~ (28) Sufentanil-;
 (29) Tapentadol;
 (30) Thiafentanil.

(d) Stimulants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a stimulant effect on the central nervous system:

- (1) Amphetamine, its salts, optical isomers, and salts of its optical isomers;
- (2) Lisdexamfetamine, its salts, isomers, and salts of its isomers;
- (3) Methamphetamine, its salts, isomers, and salts of its isomers;
- (4) Phenmetrazine and its salts;
- (5) Methylphenidate.

(e) Depressants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a depressant effect on the central nervous system, including its salts, isomers, and salts of isomers, whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

- (1) Amobarbital;
- (2) Glutethimide;
- (3) Pentobarbital;
- (4) Phencyclidine;
- (5) Secobarbital.
- (f) Hallucinogenic substances.

(1) Nabilone (another name for nabilone: ~~(+/-)-trans-3-(1,1-dimethylheptyl)-6,6a,7,8,10,10a-hexahydro-1-hydroxy-6,6-dimethyl-9H-dibenzo[b,d]pyran-9-one~~ (21 CFR 1308.12 (f))).

(g) Immediate precursors. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances:

(1) Immediate precursor to amphetamine and methamphetamine:

- ~~(a)~~ i. Anthranilic acid;
- ~~(b)~~ ii. Ephedrine;
- ~~(c)~~ iii. Lead acetate;
- ~~(d)~~ iv. Methylamine;
- ~~(e)~~ v. Methyl formamide;
- ~~(f)~~ vi. N-methylephedrine;
- ~~(g)~~ vii. Phenylacetic acid;
- ~~(h)~~ viii. Phenylacetone (phenyl-2-propanone, P2P);
- ~~(i)~~ ix. Phenylpropanolamine;
- ~~(j)~~ x. Pseudoephedrine.

Except that any combination or compound containing ephedrine, or any of its salts and isomers, or phenylpropanolamine or its salts and isomers, or pseudoephedrine, or any of its salts and isomers which is prepared for dispensing or over-the-counter distribution is not a controlled substance for the purpose of this section, unless such substance is possessed, delivered, or possessed with intent to deliver to another with the intent to manufacture methamphetamine, amphetamine or any other controlled substance in violation of section 37-2732, Idaho Code. For purposes of this provision, the requirements of the uniform controlled substances act shall not apply to a manufacturer, wholesaler or retailer of over-the-counter products containing the listed substances unless such person possesses, delivers, or possesses with intent to deliver to another the over-the-counter product with intent to manufacture a controlled substance.

(2) Immediate precursors to phencyclidine (PCP):

~~(a) i.~~ 1-phenylcyclohexylamine;

~~(b) ii.~~ 1-piperidinocyclohexanecarbonitrile (PCC).

(3) Immediate precursors to fentanyl:

~~i.~~ 4-anilino-N-phenethyl-4-piperidine (ANPP);

ii. Norfentanyl.

SECTION 3. That Section 37-2709, Idaho Code, be, and the same is hereby amended to read as follows:

37-2709. SCHEDULE III. (a) Schedule III shall consist of the drugs and other substances, by whatever official name, common or usual name, chemical name, or brand name designated, listed in this section.

(b) Stimulants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a stimulant effect on the central nervous system, including its salts, isomers, (whether optical, positional, or geometric), and salts of such isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

(1) Those compounds, mixtures, or preparations in dosage unit form containing any stimulant substances listed in schedule II which compounds, mixtures, or preparations were listed as excepted compounds under 21 CFR 1308.32, and any other drug of the quantitative composition shown in that list for those drugs or which is the same except that it contains a lesser quantity of controlled substances.

(2) Benzphetamine;

(3) Chlorphentermine;

(4) Clortermine;

(5) Phendimetrazine.

(c) Depressants. Unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a potential for abuse associated with a depressant effect on the central nervous system:

(1) Any compound, mixture or preparation containing the following substances or any salt thereof and one (1) or more other active medicinal ingredients that are not listed in any schedule:

- 1 i. Amobarbital;
- 2 ii. Secobarbital;
- 3 iii. Pentobarbital ~~or any salt thereof and one (1) or more other~~
- 4 ~~active medicinal ingredients which are not listed in any schedule.~~
- 5 (2) Any suppository dosage form containing the following substances or
- 6 any salt of any of these drugs and approved by the food and drug adminis-
- 7 tration for marketing only as a suppository:
- 8 i. Amobarbital;
- 9 ii. Secobarbital;
- 10 iii. Pentobarbital ~~or any salt of any of these drugs and approved~~
- 11 ~~by the Food and Drug Administration for marketing only as a suppos-~~
- 12 ~~itory.~~
- 13 (3) Any substance which contains any quantity of a derivative of barbi-
- 14 turic acid or any salt thereof, including, but not limited to:
- 15 i. Aprobarbital;
- 16 ii. Butabarbital (secbutabarbital);
- 17 iii. Butalbital, excluding drug products exempted by the federal
- 18 drug enforcement administration (DEA);
- 19 iv. Butobarbital (butethal);
- 20 v. Talbutal;
- 21 vi. Thiamylal;
- 22 vii. Thiopental;
- 23 viii. Vinbarbital.
- 24 (4) Chlorhexadol;
- 25 (5) Embutramide;
- 26 (6) Any drug product containing gamma hydroxybutyric acid (GHB), in-
- 27 cluding its salts, isomers, and salts of isomers, for which an applica-
- 28 tion is approved under section 505 of the federal food, drug, and cos-
- 29 metic act;
- 30 (7) Ketamine, its salts, isomers, and salts of isomers-
- 31 ~~7285. (Some other names for ketamine: (+/-)-2-(2-chlorophenyl)-2-~~
- 32 ~~(methylamino)-cyclohexanone).~~
- 33 (8) Lysergic acid;
- 34 (9) Lysergic acid amide (LSA, LAA);
- 35 (10) Methyprylon;
- 36 (11) Perampanel, and its salts, isomers and salts of isomers;
- 37 (12) Sulfondiethylmethane;
- 38 (13) Sulfonethylmethane;
- 39 (14) Sulfonmethane;
- 40 (15) Tiletamine and zolazepam or any salt thereof.
- 41 (d) Nalorphine.
- 42 (e) Narcotic drugs. Unless specifically excepted or unless listed in
- 43 another schedule:
- 44 (1) Any material, compound, mixture, or preparation containing limited
- 45 quantities of any of the following narcotic drugs, or any salts thereof:
- 46 ~~(i)~~ i. Not more than 1.8 grams of codeine, or any of its salts,
- 47 per 100 milliliters or not more than 90 milligrams per dosage unit,
- 48 with an equal or greater quantity of an isoquinoline alkaloid of
- 49 opium;

~~(ii)~~ ii. Not more than 1.8 grams of codeine, or any of its salts, per 100 milliliters or not more than 90 milligrams per dosage unit, with one (1) or more active, nonnarcotic ingredients in recognized therapeutic amounts;

~~(iii)~~ iii. Not more than 1.8 grams of dihydrocodeine, or any of its salts, per 100 milliliters or not more than 90 milligrams per dosage unit, with one (1) or more active, nonnarcotic ingredients in recognized therapeutic amounts;

~~(iv)~~ iv. Not more than 300 milligrams of ethylmorphine, or any of its salts, per 100 milliliters or not more than 15 milligrams per dosage unit, with one (1) or more active, nonnarcotic ingredients in recognized therapeutic amounts;

~~(v)~~ v. Not more than 500 milligrams of opium per 100 milliliters or per 100 grams, or not more than 25 milligrams per dosage unit, with one (1) or more active, nonnarcotic ingredients in recognized therapeutic amounts;

~~(vi)~~ vi. Not more than 50 milligrams of morphine, or any of its salts, per 100 milliliters or per 100 grams with one (1) or more active, nonnarcotic ingredients in recognized therapeutic amounts.

(2) Any material, compound, mixture, or preparation containing any of the following narcotic drugs or their salts, as set forth below:

~~(i)~~ i. Buprenorphine.

~~(ii)~~ ii. [Reserved].

(f) Anabolic steroids and human growth hormones. Any drug or hormonal substance, chemically and pharmacologically related to testosterone (other than estrogens, progestins and corticosteroids) that promotes muscle growth including any salt, ester or isomer of a drug or substance listed in this subsection, if that salt, ester or isomer promotes muscle growth.

- (1) 13beta-ethyl-17beta-hydroxygon-4-en-3-one;
- (2) 17alpha-methyl-3alpha, 17beta-dihydroxy-5alpha-androstane;
- (3) 17alpha-methyl-3beta, 17beta-dihydroxy-5alpha-androstane;
- (4) 17alpha-methyl-3beta, 17beta-dihydroxyandrost-4-ene;
- (5) 17alpha-methyl-4-hydroxynandrolone;
- (6) 17alpha-methyl-5alpha-androstan-17beta-ol;
- (7) 17alpha-methyl-androst-2-ene-3,17beta-diol;
- (8) 17alpha-methyl-androsta-1,4-diene-3,17beta-diol;
- (9) 17alpha-methyl-androstan-3-hydroxyimine-17beta-ol;
- (10) 17alpha-methyl-delta1-dihydrotestosterone;
- (11) 17beta-hydroxy-androstano[2,3 3,2-c]isoxazole;
- (12) 17beta-hydroxy-androstano[2,3-d]isoxazole;
- (13) 18alpha-homo-3-hydroxy-estra-2,5(10)-dien-17-one;
- (14) 19-nor-4-androstenediol;
- (15) 19-nor-4-androstenedione;
- (16) 19-nor-4,9(10)-androstadienedione;
- (17) 19-nor-5-androstenediol;
- (18) 19-nor-5-androstenedione;
- (19) 1-androstenediol;
- (20) 1-androstenedione;
- (21) 2alpha,17alpha-dimethyl-17beta-hydroxy-5beta-androstan-3-one;

- 1 (22) 2alpha,3alpha-epithio-17alpha-methyl-5alpha-androstan-17beta-
- 2 ol;
- 3 (23) [3,2-c]furazan-5alpha-androstan-17beta-ol;
- 4 (24) [3,2-c]pyrazole-androst-4-en-17beta-ol;
- 5 (25) 3alpha,17beta-dihydroxy-5alpha-androstane;
- 6 (26) 3beta,17beta-dihydroxy-5alpha-androstane;
- 7 (27) 3beta-hydroxy-estra-4,9,11-trien-17-one;
- 8 (28) 4-androstenediol;
- 9 (29) 4-androstenedione;
- 10 (30) 4-chloro-17alpha-methyl-androsta-1,4-diene-3,17beta-diol;
- 11 (31) 4-chloro-17alpha-methyl-androst-4-ene-3beta,17beta-diol;
- 12 (32) 4-chloro-17alpha-methyl-17beta-hydroxy-androst-4-en-3-one;
- 13 (33) 4-chloro-17alpha-methyl-17beta-hydroxy-androst-4-ene-3,11-
- 14 dione;
- 15 (34) 4-hydroxy-19-nortestosterone;
- 16 (35) 4-hydroxy-androst-4-ene-3,17-dione;
- 17 (36) 4-hydroxytestosterone;
- 18 (37) 5alpha-androstan-3,17-dione;
- 19 (38) 5alpha-androstan-3,6,17-trione;
- 20 (39) 5-androstenediol;
- 21 (40) 5-androstenedione;
- 22 (41) 6alpha-methyl-androst-4-ene-3,17-dione;
- 23 (42) 6-bromo-androsta-1,4-diene-3,17-dione;
- 24 (43) 6-bromo-androstan-3,17-dione;
- 25 (44) Androstenedione;
- 26 (45) Bolasterone;
- 27 (46) Boldenone;
- 28 (47) Boldione;
- 29 (48) Calusterone;
- 30 (49) Chlorotestosterone (4-chlorotestosterone);
- 31 (50) Clostebol;
- 32 (51) Dehydrochlormethyltestosterone;
- 33 (52) Delta1-dihydrotestosterone (1-testosterone);
- 34 (53) Desoxymethyltestosterone (madol);
- 35 (54) Dihydrotestosterone (4-dihydrotestosterone);
- 36 (55) Drostanolone;
- 37 (56) Estra-4,9,11-triene-3,17-dione;
- 38 (57) Ethylestrenol;
- 39 (58) Fluoxymesterone;
- 40 (59) ~~Formebolone~~ Formebolone;
- 41 (60) Furazabol;
- 42 (61) Human growth hormones;
- 43 (62) Mestanolone;
- 44 (63) Mesterolone;
- 45 (64) Methandienone;
- 46 (65) Methandranone;
- 47 (66) Methandriol;
- 48 (67) Methandrostenolone;
- 49 (68) Methasterone (~~2a,17a-dimethyl-5a-androstan-17beta-ol-3-one~~);
- 50 (69) Methenolone;

- (70) Methyldienolone;
- (71) Methyltestosterone;
- (72) Methyltrienolone;
- (73) Mibolerone;
- (74) Nandrolone;
- (75) Norbolethone;
- (76) Norclostebol;
- (77) Norethandrolone;
- (78) Normethandrolone;
- (79) Oxandrolone;
- (80) Oxymesterone;
- (81) Oxymetholone;
- (82) Prostanazol (~~17 β -hydroxy-5 α -androstanol-3,2-*c*-pyrazole~~);
- (83) Stanolone;
- (84) Stanazolol;
- (85) Stenbolone;
- (86) Testolactone;
- (87) Testosterone;
- (88) Testosterone cypionate;
- (89) Testosterone enanthate;
- (90) Testosterone propionate;
- (91) Tetrahydrogestrinone;
- (92) Trenbolone.

Anabolic steroids that are expressly intended for administration through implants or injection to cattle or other nonhuman species, and that are approved by the federal Food and Drug Administration for such use, shall not be classified as controlled substances under this act and shall not be governed by its provisions.

In addition to the penalties prescribed in article IV of the uniform controlled substances act, any person shall be guilty of a felony who prescribes, dispenses, supplies, sells, delivers, manufactures or possesses with the intent to prescribe, dispense, supply, sell, deliver or manufacture anabolic steroids or any other human growth hormone for purposes of enhancing performance in an exercise, sport or game or hormonal manipulation intended to increase muscle mass, strength or weight without a medical necessity as determined by a physician.

(g) Hallucinogenic substances.

(1) Dronabinol (synthetic) in sesame oil and encapsulated in a soft gelatin capsule in the federal Food and Drug Administration approved product -- 7369. ~~(Some other names for dronabinol: (6aR-trans)-6a,7,8,10a-tetrahydro-6,6,9-trimethyl-3-pentyl-6H-dibenzo[b,d]pyran-1-ol or (-)-delta-9-(trans)-tetrahydrocannabinol).~~

(h) The board may except by rule any compound, mixture, or preparation containing any stimulant or depressant substance listed in subsection (b) or (c) of this section from the application of all or any part of this act if the compound, mixture, or preparation contains one (1) or more active medicinal ingredients not having a stimulant or depressant effect on the central nervous system, and if the admixtures are included therein in combinations, quantity, proportion, or concentration that vitiate the potential for abuse

of the substances which have a stimulant or depressant effect on the central nervous system.

SECTION 4. That Section 37-2711, Idaho Code, be, and the same is hereby amended to read as follows:

37-2711. SCHEDULE IV. (a) Schedule IV shall consist of the drugs and other substances, by whatever official name, common or usual name, chemical name, or brand name designated, listed in this section.

(b) Narcotic drugs. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation containing any of the following narcotic drugs, or their salts calculated as the free anhydrous base or alkaloid, in limited quantities as set forth below:

(1) No more than 1 milligram of difenoxin and not less than 25 micrograms of atropine sulfate per dosage unit;

(2) Dextropropoxyphene (alpha-(+)-4-dimethylamino-1, 2-diphenyl-3-methyl-2-propionoxybutane);

(3) ~~2-[(dimethylamino)methyl]-1-(3-methoxyphenyl)cyclohexanol (including tramadol)~~ Tramadol, including its salts, optical and geometric isomers, and salts of isomers.

(c) Depressants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances, including its salts, isomers, and salts of isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

(1) Alfaxalone 5[alpha]-pregnan-3[alpha]-ol-11,20-dione;

(2) Alprazolam;

(3) Barbitol;

(4) Brexanolone (allopregnanolone);

~~(4)~~ (5) Bromazepam;

~~(5)~~ (6) Camazepam;

~~(6)~~ (7) Carisoprodol;

~~(7)~~ (8) Chloral betaine;

~~(8)~~ (9) Chloral hydrate;

~~(9)~~ (10) Chlordiazepoxide;

~~(10)~~ (11) Clobazam;

~~(11)~~ (12) Clonazepam;

~~(12)~~ (13) Clorazepate;

~~(13)~~ (14) Clotiazepam;

~~(14)~~ (15) Cloxazolam;

~~(15)~~ (16) Daridorexant;

~~(16)~~ (17) Delorazepam;

~~(17)~~ (18) Diazepam;

~~(18)~~ (19) Dichloralphenazone;

~~(19)~~ (20) Estazolam;

~~(20)~~ (21) Ethchlorvynol;

~~(21)~~ (22) Ethinamate;

~~(22)~~ (23) Ethyl loflazepate;

~~(23)~~ (24) Fludiazepam;

~~(24)~~ (25) Flurazepam;

~~(25)~~ (26) Fospropofol;

~~(26)~~ (27) Halazepam;
~~(27)~~ (28) Haloxazolam;
~~(28)~~ (29) Ketazolam;
~~(29)~~ (30) Lemborexant;
~~(30)~~ (31) Loprazolam;
~~(31)~~ (32) Lorazepam;
~~(32)~~ (33) Lormetazepam;
~~(33)~~ (34) Mebutamate;
~~(34)~~ (35) Medazepam;
~~(35)~~ (36) Meprobamate;
~~(36)~~ (37) Methohexital;
~~(37)~~ (38) Methylphenobarbital (mephobarbital);
~~(38)~~ (39) Midazolam;
~~(39)~~ (40) Nimetazepam;
~~(40)~~ (41) Nitrazepam;
~~(41)~~ (42) Nordiazepam;
~~(42)~~ (43) Oxazepam;
~~(43)~~ (44) Oxazolam;
~~(44)~~ (45) Paraldehyde;
~~(45)~~ (46) Petrichloral;
~~(46)~~ (47) Phenobarbital;
~~(47)~~ (48) Pinazepam;
~~(48)~~ (49) Prazepam;
~~(49)~~ (50) Quazepam;
~~(50)~~ (51) Remimazolam;
~~(51) Serdexmethypheniate;~~
(52) Suvorexant;
(53) Temazepam;
(54) Tetrazepam;
(55) Triazolam;
(56) Zaleplon;
(57) Zolpidem;
(58) Zopiclone;
(59) Zuranolone.

(d) Fenfluramine -- Any material, compound, mixture, or preparation which contains any quantity of the following substances, including its salts, isomers (whether optical, position, or geometric), and salts of such isomers, whenever the existence of such salts, isomers, and salts of isomers is possible:

- (1) Dexfenfluramine;
- (2) Fenfluramine.

(e) Stimulants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a stimulant effect on the central nervous system, including its salts, isomers (whether optical, position, or geometric), and salts of such isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

- (1) Cathine ((+)-norpseudoephedrine);
- (2) Diethylpropion;

1 (3) Fencamfamin;
 2 (4) Fenproporex;
 3 (5) Lorcaserin;
 4 (6) Mazindol;
 5 (7) Mefenorex;
 6 (8) Modafinil;
 7 (9) Pemoline (including organometallic complexes and chelates
 8 thereof);
 9 (10) Phentermine;
 10 (11) Pipradrol;
 11 (12) Serdexmethylpheniate;
 12 ~~(12) (13) Sibutramine;~~
 13 ~~(13) (14) SPA ((-)-1-dimethylamino-1,2-diphenylethane);~~
 14 ~~(14) (15) Solriamfetol(2-amino-3-phenylpropyl carbamate; benzene-~~
 15 ~~propanol, beta-amino-, carbamate(ester)).~~
 16 (f) Other substances. Unless specifically excepted, or unless listed
 17 in another schedule, any material, compound, mixture or preparation which
 18 contains any quantity of the following substances, including its salts:
 19 ~~(1) Brexanolone (3A-hydroxy-5A-pregnan-20-one), allopregnanolone;~~
 20 ~~(2) (1) Butorphanol (including its optical isomers);~~
 21 ~~(3) (2) Eluxadoline (5-[[[(2S)-2-amino-3-[4-aminocarbonyl]-2,6-~~
 22 ~~dimethylphenyl]-1-oxopropyl][(1S)-1-(4-phenyl-1H-imidazol-2-~~
 23 ~~yl)ethyl]amino]methyl]-2-methoxybenzoic acid) (including its optical~~
 24 ~~isomers) and its salts, isomers, and salts of isomers);~~
 25 ~~(4) (3) Pentazocine.~~
 26 (g) The board may except, by rule, any compound, mixture, or prepara-
 27 tion containing any depressant substance listed in subsection (c) of this
 28 section from the application of all or any part of this act if the compound,
 29 mixture, or preparation contains one (1) or more active medicinal ingredi-
 30 ents not having a depressant effect on the central nervous system, and if the
 31 admixtures are included therein in combinations, quantity, proportion, or
 32 concentration that vitiate the potential for abuse of the substances which
 33 have a depressant effect on the central nervous system.

34 SECTION 5. That Section 37-2713, Idaho Code, be, and the same is hereby
 35 amended to read as follows:

36 37-2713. SCHEDULE V. (a) Schedule V shall consist of the drugs and
 37 other substances, by whatever official name, common or usual name, chemical
 38 name, or brand name designated, listed in this section.

39 (b) Narcotic drugs. Unless specifically excepted or unless listed in
 40 another schedule, any material, compound, mixture, or preparation contain-
 41 ing any of the following narcotic drugs and their salts, as set forth below.

42 (c) Narcotic drugs containing nonnarcotic active medicinal ingredi-
 43 ents. Any compound, mixture, or preparation containing any of the follow-
 44 ing limited quantities of narcotic drugs or salts thereof, which shall in-
 45 clude one (1) or more nonnarcotic active medicinal ingredients in sufficient
 46 proportion to confer upon the compound, mixture, or preparation, valuable
 47 medicinal qualities other than those possessed by the narcotic drug alone:

48 (1) Not more than 200 milligrams of codeine per 100 milliliters or per
 49 100 grams;

(2) Not more than 100 milligrams of dihydrocodeine per 100 milliliters or per 100 grams;

(3) Not more than 100 milligrams of ethylmorphine per 100 milliliters or per 100 grams;

(4) Not more than 2.5 milligrams of diphenoxylate and not less than 25 micrograms of atropine sulfate per dosage unit;

(5) Not more than 100 milligrams of opium per 100 milliliters or per 100 grams;

(6) Not more than 0.5 milligrams difenoxin and not less than 25 micrograms of atropine sulfate per dosage unit.

(d) Other substances. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture or preparation which contains any quantity of the following substances, including its salts:

(1) Brivaracetam ~~((2S)-2-[(4R)-2-oxo-4-propylpyrrolidin-1-yl]butanamide)~~ (also referred to as BRV; UCB-34714; Briviact) (including its salts);

(2) Cenobamate ~~[(1R)-1-(2-chlorophenyl)-2-(tetrazol-2-yl)ethyl]carbamate~~;

(3) Ezogabine ~~[N-[2-amino-4-(4-fluorobenzylamino)-phenyl]-carbamie acid ethyl ester]-2779~~;

(4) Ganaxolone ~~(3-alpha-hydroxy-3-beta-methyl-5-alpha-pregnan-20-one)~~;

(5) Lacosamide;

(6) Lasmiditan ~~[2,4,6-trifluoro-N-(6-(1-methylpiperidine-4-carbonyl)pyridine-2-yl)benzamide]~~;

(7) Pregabalin;

(8) Pyrovalerone.

SECTION 6. That Section 37-2716, Idaho Code, be, and the same is hereby amended to read as follows:

37-2716. REGISTRATION REQUIREMENTS. (a) Every person who manufactures, distributes, prescribes, administers, or conducts research with any controlled substance within this state shall obtain ~~annually~~ biennially a registration issued by the board in accordance with Idaho law. All drug outlets with a valid license or registration under chapter 17, title 54, Idaho Code, are exempt from obtaining a separate controlled substance registration.

(b) Every dispenser and prescriber, except veterinarians, shall also register with the division to obtain online access to the controlled substances prescriptions database.

(c) Persons registered by the board under this chapter may possess, manufacture, distribute, dispense, prescribe, administer, or conduct research with those substances to the extent authorized by their registration and licensing entity and in conformity with the other provisions of this chapter.

(d) The following persons need not register and may lawfully possess controlled substances under this chapter:

(1) An agent or employee of any person registered pursuant to this chapter, if he is acting in the usual course of his business or employment;

1 (2) A common or contract carrier or warehouseman, or an employee
2 thereof, whose possession of any controlled substance is in the usual
3 course of business or employment;

4 (3) An ultimate user or a person in possession of any controlled sub-
5 stance pursuant to a lawful order of a practitioner or in lawful posses-
6 sion of a schedule V substance.

7 (e) A separate registration is required at each principal place of
8 business or professional practice where the applicant manufactures, dis-
9 tributes, administers, dispenses, or conducts research with controlled
10 substances, except a separate registration is not required under this chap-
11 ter for practitioners engaging in research with nonnarcotic controlled
12 substances in schedules II through IV where the practitioner is already reg-
13 istered under this chapter in another capacity.

14 (f) Practitioners registered under federal law to conduct research
15 with schedule I substances may conduct research with schedule I substances
16 within this state upon registering in Idaho and furnishing the board with
17 evidence of the practitioner's federal registration.

18 (g) The board may inspect the establishment of a registrant or appli-
19 cant for registration in accordance with Idaho law.

20 SECTION 7. That Section 37-2717, Idaho Code, be, and the same is hereby
21 amended to read as follows:

22 37-2717. REGISTRATION. The board shall register an applicant to man-
23 ufacture, prescribe, administer, dispense, distribute or conduct research
24 with controlled substances included in sections 37-2705, 37-2707, 37-2709,
25 37-2711 and 37-2713, Idaho Code, unless it determines that the issuance of
26 that registration would be inconsistent with the public interest. In deter-
27 mining the public interest, the board shall consider the following factors:

28 (a) Maintenance of effective controls against diversion of controlled
29 substances into other than legitimate medical, scientific, or industrial
30 channels;

31 (b) Compliance with applicable state and local law;

32 (c) Any convictions of the applicant under any federal and state laws
33 relating to any controlled substance;

34 (d) ~~Past experience~~ Experience in the manufacture, dispensing,
35 prescribing, administering, research or distribution of controlled sub-
36 stances, and the existence in the applicant's establishment of effective
37 controls against diversions;

38 (e) Furnishing by the applicant of false or fraudulent material in any
39 application filed under this chapter;

40 (f) Restriction, suspension or revocation of the applicant's federal
41 registration; and

42 (g) Any other factors relevant to and consistent with the public health
43 and safety.

44 SECTION 8. That Section 37-2718, Idaho Code, be, and the same is hereby
45 amended to read as follows:

1 37-2718. DISCIPLINE. (a) A registration under section 37-2717, Idaho
 2 Code, may be restricted, suspended or revoked by the board upon a finding
 3 that the registrant:

4 (1) Has furnished false or fraudulent material information in any ap-
 5 plication filed under this act;

6 (2) Has been found guilty of a felony or misdemeanor under any state or
 7 federal law relating to any controlled substance;

8 (3) Has had his federal registration restricted, suspended or revoked;
 9 or

10 (4) Has violated this chapter, any rule of the board promulgated un-
 11 der this act, an order of the board or any federal regulation relating to
 12 controlled substances; provided, however, that no restriction, revoca-
 13 tion or suspension procedure be initiated under this paragraph without
 14 the board first giving notice of the procedure to the state licensing
 15 board with authority over the registrant's professional license.

16 (b) The notice required in subsection (a) (4) of this section shall be
 17 given immediately in the event action is taken without an order to show cause
 18 as allowed under section 37-2719(b), Idaho Code. In all other cases, such
 19 notice shall be given as early as reasonably practicable without risking
 20 compromise of the board's investigation but no later than the earlier of:

21 (1) Issuance of an order to show cause under section 37-2719(a), Idaho
 22 Code; or

23 (2) Setting of a hearing for approval of a resolution of the matter
 24 through informal proceedings.

25 (c) Restriction, revocation or suspension procedures arising solely
 26 from "practice-related issues" shall be referred by the board to such regis-
 27 trant's state licensing board.

28 (1) Upon such referral, the registrant's state licensing board shall
 29 commence such investigation of the referred matter as it deems neces-
 30 sary and shall take action upon the registrant's license or shall inform
 31 the board of pharmacy, in writing, that it has investigated the referred
 32 matter and has concluded that no action is necessary.

33 (2) For purposes of this section, the term "practice-related issues"
 34 refers to issues involving questions regarding the professional con-
 35 duct of the registrant within the scope of the registrant's profession.

36 (d) The board may limit the revocation or suspension of a registration
 37 to the particular controlled substance with respect to which grounds for re-
 38 vocation or suspension exist.

39 (e) If the board restricts, suspends or revokes a registration, all
 40 pertinent controlled substances owned or possessed by the registrant at the
 41 time of the restriction or suspension or the effective date of the revocation
 42 order ~~may~~ shall be placed under seal. No disposition may be made of sub-
 43 stances under seal until the time for taking an appeal has elapsed or until
 44 all appeals have been concluded unless a court, upon application therefor,
 45 orders the sale of perishable substances and the deposit of the proceeds of
 46 the sale with the court. Upon a revocation order becoming final, all con-
 47 trolled substances may be forfeited to the state for transfer to a reverse
 48 distributor.

49 (f) The board shall promptly notify the bureau and the state licensing
 50 board with authority over the registrant's professional license of all or-

1 ders restricting, suspending or revoking registration and all forfeitures
2 of controlled substances.

3 (g) In the event the drug enforcement administration or a state li-
4 censing board with authority over a registrant's professional license or
5 registration takes an action against the registrant in any fashion which
6 suspends, restricts, limits or affects the registrant's ability to manufac-
7 ture, distribute, prescribe, administer, dispense, or conduct research with
8 any controlled substance, the professional licensing board shall promptly
9 notify the board of pharmacy of the action.

10 (1) Upon such action, the board of pharmacy shall be authorized to issue
11 its order suspending, restricting, limiting or otherwise affecting the
12 registrant's controlled substance registration in the same fashion as
13 the professional licensing board action.

14 (2) The board of pharmacy order may be issued without further hearing or
15 proceeding, but shall be subject to the effect of any reversal or modi-
16 fication of the professional licensing board action by reason of any ap-
17 peal or rehearing.

18 SECTION 9. That Section 37-2719, Idaho Code, be, and the same is hereby
19 amended to read as follows:

20 37-2719. ORDER TO SHOW CAUSE. (a) Except as set forth in section
21 37-2718(g), Idaho Code, before denying, restricting, suspending or revoking
22 a registration, or refusing a renewal of registration, the board shall serve
23 upon the applicant or registrant an order to show cause why the registration
24 should not be restricted, denied, revoked, or suspended, or why the renewal
25 should not be refused. The order to show cause shall contain a statement
26 of the basis ~~therefor~~ for discipline and shall call upon the applicant or
27 registrant to appear before the board at a time and place not less than thirty
28 (30) days after the date of service of the order, but in the case of ~~a~~ an
29 anticipated denial or renewal of registration the show cause order shall
30 be served not later than thirty (30) days before the expiration of the reg-
31 istration. These proceedings shall be conducted in accordance with chapter
32 52, title 67, Idaho Code, without regard to any criminal prosecution or other
33 proceeding. Proceedings to refuse renewal of registration shall not abate
34 the existing registration which shall remain in effect pending the outcome
35 of the administrative hearing.

36 (b) The board may suspend, without an order to show cause, any regis-
37 tration simultaneously with the institution of proceedings under section
38 37-2718, Idaho Code, or where renewal of registration is refused, if it finds
39 that there is an imminent danger to the public health or safety which war-
40 rants this action. The suspension shall continue in effect until the conclu-
41 sion of the proceedings, including judicial review thereof, unless sooner
42 withdrawn by the board or dissolved by a court of competent jurisdiction.

43 (c) In conjunction with a proceeding for denying, restricting, sus-
44 pending or revoking a registration, or refusing a renewal of registration,
45 and upon a finding of grounds for such denial, restriction, suspension,
46 revocation or refusal to renew, the board may also impose ~~an~~ a reasonable ad-
47 ministrative fine not to exceed two thousand dollars (\$2,000) per occurrence
48 and additionally may include forfeiture of illicit profits and the costs of

1 prosecution and administrative costs of bringing the action including, but
2 not limited to, attorney's fees and costs and costs of hearing transcripts.

3 SECTION 10. That Section 37-2720, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 37-2720. RECORDS -- DRUG STORAGE -- INVENTORY. Persons registered un-
6 der this chapter shall keep records, store controlled substances and main-
7 tain inventories in conformance with the recordkeeping, storage and inven-
8 tory requirements of state and federal law ~~and with any additional rules the~~
9 ~~board issues.~~

10 SECTION 11. That Section 37-2722, Idaho Code, be, and the same is hereby
11 amended to read as follows:

12 37-2722. ISSUING, DISTRIBUTING, AND DISPENSING OF CONTROLLED SUB-
13 STANCES. No person shall issue or dispense a prescription drug order for a
14 controlled substance unless it is in compliance with applicable state and
15 federal law ~~and rules of the board.~~

16 (a) Controlled substances included in schedule I shall be distributed
17 only by a registrant to another registrant pursuant to the federal drug en-
18 forcement administration (DEA) order form 222.

19 (b) Controlled substances included in schedule II shall:

20 (1) Be distributed only by a registrant to another registrant pursuant
21 to DEA order form 222.

22 (2) Be dispensed only pursuant to a valid prescription drug order, ex-
23 cept when dispensed directly by a prescriber.

24 (3) Not be refilled.

25 (4) Include a quantity that is both spelled out in English and written
26 in numerical form, when a written prescription drug order is required.

27 (c) Controlled substances included in schedule III or IV shall:

28 (1) Be dispensed only pursuant to a valid prescription drug order, ex-
29 cept when dispensed directly by a prescriber.

30 (2) Not be filled or refilled more than six (6) months after the date
31 thereof or be refilled more than five (5) times, unless renewed by the
32 practitioner.

33 (d) Controlled substances included in schedule V shall not be dis-
34 tributed or dispensed other than for a medical purpose.

35 (e) A pharmacist may dispense a controlled substance pursuant to a
36 valid prescription drug order of an individual licensed in a jurisdiction
37 other than the state of Idaho as long as the individual is acting within the
38 jurisdiction, scope and authority of his license.

39 (f) Prior to issuing to a patient a prescription for outpatient use
40 for an opioid analgesic or benzodiazepine listed in schedule II, III, or
41 IV, the prescriber or the prescriber's delegate shall review the patient's
42 prescription drug history for the preceding twelve (12) months from the pre-
43 scription drug monitoring program and evaluate the data for indicators of
44 prescription drug diversion or misuse. This review is not required:

45 (1) For patients:

46 ~~(i)~~ i. Receiving treatment in an inpatient setting;

47 ~~(ii)~~ ii. At the scene of an emergency or in an ambulance;

1 ~~(iii)~~ iii. In hospice care; or
 2 ~~(iv)~~ iv. In a skilled nursing home care facility; or
 3 (2) For a prescription in a quantity intended to last no more than three
 4 (3) days.
 5 ~~(g) Subsection (f) of this section shall be effective on and after Octo-~~
 6 ~~ber 1, 2020, and shall apply only to individuals required by this chapter to~~
 7 ~~register for the prescription drug monitoring program.~~

8 SECTION 12. That Section 37-2726, Idaho Code, be, and the same is hereby
 9 amended to read as follows:

10 37-2726. FILING PRESCRIPTIONS -- DATABASE. (1) All controlled sub-
 11 stances and opioid antagonists as defined in section 54-1704, Idaho Code,
 12 dispensed for humans shall be filed with the division electronically in a
 13 format established by the division. The division may require the filing of
 14 other prescriptions by law or rule. The division shall establish the in-
 15 formation to be submitted pursuant to the purposes of this section and the
 16 purposes set forth in section 37-2730A, Idaho Code.

17 (2) The division shall create, operate and maintain a controlled
 18 substances prescriptions database containing the information submitted
 19 pursuant to subsection (1) of this section to be used for the purposes
 20 and subject to the terms, conditions and immunities described in section
 21 37-2730A, Idaho Code. The division shall retain the information submitted
 22 pursuant to subsection (1) of this section for a period of five (5) years from
 23 the date the controlled substance was dispensed. The database information
 24 ~~must~~ may be made available only to the following:

25 (a) Authorized individuals employed by the division, Idaho's boards,
 26 or other states' licensing entities charged with the licensing and dis-
 27 cipline of practitioners;

28 (b) Peace officers and investigators employed by federal, state and lo-
 29 cal law enforcement agencies engaged as a specified duty of their em-
 30 ployment in enforcing law regulating controlled substances;

31 (c) Authorized individuals under the direction of the department of
 32 health and welfare for the purpose of monitoring and enforcing that
 33 department's responsibilities under the public health, medicare and
 34 medicaid laws;

35 (d) A practitioner, licensed in Idaho or another state, having author-
 36 ity to prescribe controlled substances, or a delegate under the prac-
 37 titioner's supervision, to the extent the information relates specifi-
 38 cally to a current patient of the practitioner to whom the practitioner
 39 is prescribing or considering prescribing any controlled substance;

40 (e) A pharmacist, licensed in Idaho or another state, having author-
 41 ity to dispense controlled substances, or a delegate under the pharma-
 42 cist's supervision, to the extent the information relates specifically
 43 to a current patient to whom that pharmacist is dispensing or consid-
 44 ering dispensing any controlled substance, or providing pharmaceutical
 45 care as defined in the Idaho pharmacy act;

46 (f) An individual who is the recipient of a dispensed controlled sub-
 47 stance entered into the database may access records that pertain to that
 48 individual, upon the production of positive identification, or that in-
 49 dividual's designee upon production of a ~~notarized~~ release of informa-

tion by that individual that is notarized or otherwise certified pursuant to section 9-1406, Idaho Code;

(g) Upon a lawful order issued by the presiding judge in a court of competent jurisdiction for the release of prescription monitoring program records of a named individual;

(h) Prosecuting attorneys, deputy prosecuting attorneys, and special prosecutors ~~of a county or city employed by federal, state, county, or local agencies~~ and special assistant attorneys general from the office of the attorney general engaged in enforcing law regulating controlled substances; and

(i) A medical examiner or coroner who is an officer of or employed by a state or local government, for determining a cause of death or for performing other duties authorized by law.

~~(3) The division shall require pharmacists and prescribers, except veterinarians, to register with the division to obtain online access to the controlled substances prescriptions database.~~

~~(4)~~ (3) The division must maintain records on the information disclosed from the database, including:

(a) The identification of each individual who requests or receives information from the database and who that individual represents;

(b) The information provided to each such individual; and

(c) The date and time the information is requested or provided.

~~(5)~~ (4) The division shall ensure that only authorized individuals have access to the database.

~~(6)~~ (5) (a) ~~Any person who knowingly misrepresents to the division that he is a person entitled under subsection (2) of this section to receive information from the controlled substances prescriptions database under the conditions therein provided, and who receives information from the controlled substances prescriptions database resulting from that misrepresentation, A person is guilty of a misdemeanor if such person:~~

(i) Knowingly misrepresents to the division that he is a person entitled to receive information from the controlled substances prescriptions database pursuant to subsection (2) of this section and receives information from the controlled substances prescriptions database as a result of such misrepresentation;

(ii) Knowingly discloses information obtained from the controlled substances prescriptions database that identifies an individual patient to a person not authorized to receive or use such information under any state or federal law, rule, or regulation, without the lawful order of a court of competent jurisdiction, or without written authorization. The provisions of this subparagraph shall not apply to disclosure of individual patient information by the patient himself or disclosure of individual patient information by a federal, state, or local prosecuting attorney, a deputy prosecuting attorney or special prosecutor, or a special assistant attorney general from the office of the attorney general in the course of a criminal proceeding, whether preconviction or post-conviction; or

(iii) Intentionally shares or recklessly fails to safeguard a division-issued user account, login name, or password, result-

ing in another person obtaining information from the controlled substances prescriptions database when such other person is not authorized to receive or use such information under the provisions of any state or federal law, rule, or regulation.

(b) Any person who violates the provisions of paragraph (a) of this subsection shall be guilty of a misdemeanor, punishable by imprisonment in a county jail not to exceed six (6) months, or by a fine not to exceed two thousand dollars (\$2,000), or both. The foregoing criminal penalty is in addition to, and not in lieu of, any other civil or administrative penalty or sanction authorized by law.

~~(7) Any person in possession, whether lawfully or unlawfully, of information from the controlled substances prescriptions database that identifies an individual patient and who knowingly discloses such information to a person not authorized to receive or use such information under any state or federal law or rule or regulation, or the lawful order of a court of competent jurisdiction, or without written authorization of the individual patient shall be guilty of a misdemeanor, punishable by imprisonment in a county jail not to exceed six (6) months, or by a fine not to exceed two thousand dollars (\$2,000), or both. The foregoing criminal penalty is in addition to, and not in lieu of, any other civil or administrative penalty or sanction authorized by law. The provisions of this subsection shall not apply to disclosure of individual patient information by the patient himself. The provisions of this subsection shall not apply to disclosure of information by a prosecuting attorney, deputy prosecuting attorney or special prosecutor of a county or city or by a special assistant attorney general from the office of the attorney general in the course of a criminal proceeding, whether preconviction or postconviction.~~

~~(8) Any person with access to the division's online prescription monitoring program pursuant to a division-issued user account, login name and password who intentionally shares or recklessly fails to safeguard his user account, login name and password, resulting in another person not authorized to receive or use such information under the provisions of any state or federal law, rule or regulation obtaining information from the controlled substances prescriptions database, shall be guilty of a misdemeanor, punishable by imprisonment in a county jail not to exceed six (6) months or by a fine not to exceed two thousand dollars (\$2,000), or both. The foregoing criminal penalty is in addition to, and not in lieu of, any other civil or administrative penalty or sanction authorized by law.~~

~~(9)~~ (6) The division may, at its discretion, block access to certain controlled substances prescriptions database data if the division has reason to believe that access to the data is or may be used illegally.

~~(10)~~ (7) All costs associated with recording and submitting data as required in this section are assumed by the dispensing practitioner recording and submitting the data.

~~(11)~~ (8) For purposes of this section, "delegate" means a nurse, medical or office assistant, current student of a health profession if the health care staff, current health profession student of a licensed practitioner or registered graduate of such profession who may access the database, or a registered pharmacy technician who is designated by a supervising practitioner

1 or pharmacist to access the database according to the provisions of this sec-
2 tion and who must register with the division for such access.

3 SECTION 13. That Section 37-2731, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 37-2731. INFORMATION REQUIRED ON LABEL. A practitioner with statutory
6 authority to dispense a controlled substance shall affix to the package a la-
7 bel pursuant to ~~board rule~~ Idaho law.

8 SECTION 14. An emergency existing therefor, which emergency is hereby
9 declared to exist, this act shall be in full force and effect on and after
10 July 1, 2026.